



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAR 23 1994

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11234

EXPIRATION DATE: June 30, 1994

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Olin Corporation, Stamford, CT.
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation in commerce of methylhydrazine in DOT Specification 110A500W multi-unit tank car tanks which are not fitted with a pressure relief device, and provides no relief from any regulation other than as specifically stated herein..
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.31(a)(4), and 179.300-15.
5. BASIS. This emergency exemption is based on Olin Corporation's application dated March 18, 1994, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary to preclude serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Methylhydrazine	6.1	UN1244	I, Hazard Zone A

MAR 23 1994

Continuation of DOT-E 11234

Page 2

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are DOT Specification 110A500W multi-unit tank car tanks shipped in individual cradles which are not fitted with pressure relief devices as required by § 179.300-15.

b. TESTING - No additional testing is required as a condition of this exemption.

c. MARKING - In addition to the required specification markings, each multi-unit tank car tank must be marked on two sides in letters and numerals at least two inches high on a contrasting background, "DOT-E 11234".

8. SPECIAL PROVISIONS.

a. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

b. Highway movement of the packagings authorized under this exemption is limited to exclusive use motor vehicles owned by Cowan-Pruitt. Cargo vessel movement of the packagings authorized under this exemption is limited to American Presidents Lines vessel President Kennedy.

c. Compliance with the requirements of § 173.31(a)(4) for the material authorized under this exemption is waived.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and cargo vessel.

10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each cargo vessel and motor vehicle used to transport packages covered by this exemption.

b. For shipment by cargo vessel, multi-unit tank car tanks must be stowed "on deck".

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.106 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 23 1994

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA, USCG